

No. 26-1
IN THE
SUPREME COURT OF FANTASY FOOTBALL
October Term, 2026 (Expedited to September)
MARC GOLDICH,
Appellant (Withdrawn),
v.
GOD EMPEROR COMMISSIONER DYLUS,
Appellee (Capitulated).
MOTION TO INTERVENE, OBJECTION TO COLLUSIVE
CLASS SETTLEMENT, AND MOTION TO ENFORCE
THE JUDGMENT OF SEPTEMBER 2
SAMIR PATEL
Proposed Intervenor, Pro Se
League Member, Absent Class Member,
and Author of a Brief Nobody Needed or Received
September 5, 2026

TABLE OF AUTHORITIES

The Commissioner Says So, 1 F.F. 1 (perpetual)	passim
Goldich v. Dylus, 2 F.F. 10 (2026) (“Come on, man.”)	3
Goldich v. Dylus, No. 26-FF-0831 (Sept. 2, 2026) (denied “with prejudice”; apparently not)	passim
Schrodinger v. Dylus, 3 F.F. 1 (2026)	3
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STATEMENT

On September 2, the court below denied Appellant's motion to move the Draft, "with prejudice," and ordered that the Draft proceed at its appointed time. Appellant appealed to a court he created. This Court granted certiorari before judgment and set briefing for Friday. Movant, a League member, spent the evening drafting an amicus brief in support of the Commissioner, arguing that the Commissioner's discretion is absolute, unreviewable, and immune to pressure.

Before Movant could file, the Commissioner moved the Draft to 10:00 p.m. Appellant, having obtained everything he asked for, withdrew. No order was entered. No notice was given. The class Appellant purported to represent, "parents who occasionally pretend to prioritize their children over fantasy football," learned of the settlement the way it learns of everything, in the group chat, after the fact.

Movant's amicus brief, four pages of argument that the Commissioner cannot be moved, was mooted by the Commissioner moving. Movant regrets that he was right about the standard and wrong about the man.

Movant acknowledges that the brief was also late. He did not file it on Friday because he was observing his third wedding anniversary, an event whose date was fixed three years ago by persons possessing even greater arbitrary authority than the Commissioner: his wife. Movant does not ask the Court to excuse the delay on that basis. He recognizes that under the standard announced below, a family obligation is "some other bullshit excuse," and he declines to argue that his is different from Appellant's. He notes only that Appellant's excuse moved the Draft, and Movant's excuse cost him the deadline, and that the difference between them is not the excuse. It is the tweet.

ARGUMENT

I. MOVANT IS ENTITLED TO INTERVENE AS OF RIGHT.

Rule 24(a) requires an interest in the subject matter, a disposition that impairs it, and existing parties who will not protect it. Movant's interest is his Tuesday. The disposition ends it at 12:45 a.m. And the existing parties, who spent Wednesday calling each other tyrant and pro se, have since settled into the same side of the bed. Appellant will not protect Movant's interest because Appellant won. Appellee will not protect it because Appellee, on the record, did not want to, and then did. Nobody at this table represents the people who have to be somewhere Wednesday morning.

II. THE CASE IS NOT MOOT. THE COMMISSIONER IS IN CONTEMPT OF HIMSELF.

A party cannot moot a case by voluntarily ceasing the challenged conduct unless he shows it cannot recur. The Commissioner's entire position is that anything can recur, at any time, for any

reason, including no reason. That is not a heavy burden carried. That is a confession. The dispute is also capable of repetition yet evading review: the Draft is annual, the appeal took a week, and Back-to-School Night, Movant is told, is forever.

More to the point, the September 2 order is still on the books. It denied relief “with prejudice” and commanded attendance at the original time. Nothing vacated it. The Commissioner changed the Draft in a text, not an order, and under The Commissioner Says So, 1 F.F. 1, the Commissioner is bound by what the Commissioner says until the Commissioner says otherwise in the proper form. Movant does not concede the group chat is the proper form. Movant notes the Commissioner did not think so either, on Wednesday, when he was signing things as Presiding Justice. Movant therefore moves to enforce the judgment. Under Schrodinger, an order remains in force whether or not its author remembers issuing it.

III. A CLASS CANNOT BE SETTLED BY THE ONLY TWO PEOPLE WHO BENEFIT.

Appellant chose to plead this as a class action. Movant thought that was a mistake and said so, at length, in a brief now in the trash bin with everything else. But Appellant made his bed, and Rule 23(e) is in it. A class claim may be settled only with notice to the class and the Court’s approval after a finding that the deal is fair, reasonable, and adequate.

This one was negotiated by the two beneficiaries, communicated to no one, and imposes its entire cost on absent class members who were not asked. Appellant’s class definition swept in every parent in the League, and by his own reasoning every parent in the League is now bound by a settlement that keeps them up until 1:00 a.m. so that two of them can attend a slideshow about the cafeteria. Appellant assured this Court that “Rule 23 has survived worse.” It has not survived this. Movant requests a fairness hearing, to be held Sunday in the group chat, until someone leaves.

IV. ON THE MERITS, THE FEELINGS OF WEDNESDAY SHOULD CONTROL.

Movant adopts his amicus brief, with one correction. Movant argued that under the governing standard the only question is whether the Commissioner feels like it. That remains true. On Wednesday, the Commissioner felt like 8:00 p.m., and said so in a signed order. On Thursday, he felt like 10:00 p.m., and said so in a text. The only intervening event was 660,000 strangers on X. Movant submits that the feelings of Wednesday, formed in the Commissioner’s sole and gloriously arbitrary discretion, should control over the feelings of Thursday, which were formed in everyone else’s.

Movant also notes that the relief Appellant obtained is more than he needed. Back-to-School Night is ninety minutes. An 8:30 p.m. start would have covered it. Appellant asked for 10:00 p.m. because he could, and the Commissioner gave it because, as it turns out, he could be asked.

CONCLUSION

The Court should grant intervention, reinstate the September 2 order, and direct that the Draft proceed at 8:00 p.m. In the alternative, it should set the Draft for 8:30 p.m. and let Appellant draft from the parking lot. In the further alternative, it should hold the fairness hearing Rule 23(e) requires, at which Movant will call David, who as far as anyone knows has still not been asked.

Respectfully submitted,

/s/ Samir Patel

SAMIR PATEL

Proposed Intervenor, Pro Se

League Member and Absent Class Member

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